

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Genevieve Lamont	Team: Squad #08	CCRB Case #: 201810758	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/24/2018 12:00 AM, Thursday, 12/27/2018 9:30 AM	Location of Incident: 101st Precinct stationhouse; § 87(2)(b)	18 Mo. SOL 2/11/2021	Precinct: 101		
Date/Time CV Reported Thu, 12/27/2018 5:04 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 12/27/2018 5:04 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Edmond Decio	31394	915565	101 PCT
2. POF Yvonne Barnes	21616	939900	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Collin Wynter	3889	931456	101 DET

Officer(s)	Allegation	Investigator Recommendation
A . POM Edmond Decio	Abuse: On December 24, 2018, at the 101st Precinct stationhouse, Police Officer Edmond Decio refused to provide his shield number to § 87(2)(b)	A . Unfounded
B . POM Edmond Decio	Abuse: On December 24, 2018, at the 101st Precinct stationhouse, Police Officer Edmond Decio refused to provide his name to § 87(2)(b)	B . Unfounded
C . POM Edmond Decio	Abuse: On December 27, 2018, at § 87(2)(b) Police Officer Edmond Decio failed to provide § 87(2)(b) with a business card.	C . Unsubstantiated
D . POF Yvonne Barnes	Abuse: On December 27, 2018, at § 87(2)(b) Police Officer Yvonne Barnes failed to provide § 87(2)(b) with a business card.	D . Unsubstantiated

Case Summary

On December 27, 2018, § 87(2)(b) filed the following complaint online.

On December 20, 2018, § 87(2)(b) was arrested after getting into an altercation with the security guards at her apartment complex, § 87(2)(b) in Queens. On December 24, 2018, at approximately 9:30 a.m., § 87(2)(b) went to the 101st Precinct stationhouse in Queens to retrieve her vouchered property. She spoke with PO Edmond Decio, who informed her that she needed photo identification to collect her property. § 87(2)(b) responded that she was told she only needed her voucher and they got into an argument. § 87(2)(b) then asked PO Decio for his name, which he said quietly while turning away. § 87(2)(b) then asked for his shield number, which he allegedly did not provide (**Allegation A: Abuse of Authority; Unfounded**). She asked for his name and shield number two to three more times, which he allegedly refused to provide (**Allegation B: Abuse of Authority; Unfounded**).

On § 87(2)(b), § 87(2)(b) went to § 87(2)(b) in Queens to seek treatment for injuries that she sustained from the altercation on December 20, 2018. While at the hospital, she called 911 to file an assault report against one of the men from the altercation. PO Decio and PO Yvonne Barnes from the 101st Precinct responded to the call. § 87(2)(b) requested a police report be filed, which PO Decio refused to do. PO Yvonne Barnes then informed § 87(2)(b) that she had an outstanding warrant for a marijuana offense, which she showed § 87(2)(b) on her phone. § 87(2)(b) wrote down PO Decio and PO Barnes names and shield numbers down on her phone. Neither officer verbally provided their information. Neither officer provided § 87(2)(b) with a business card (**Allegation C and D: Abuse of Authority; Unsubstantiated**).

No video footage exists for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: On December 24, 2018, at the 101st Precinct stationhouse, Police Officer Edmond Decio refused to provide his shield number to § 87(2)(b)

Allegation (B) Abuse of Authority: On December 24, 2018, at the 101st Precinct stationhouse, Police Officer Edmond Decio refused to provide his name to § 87(2)(b)

§ 87(2)(b) stated that on December 24, 2018, she went to the 101st Precinct stationhouse to retrieve her possessions that were vouchered from her arrest on December 20, 2018. However, PO Decio was not working on December 24, 2018. PO Decio stated that he encountered § 87(2)(b) on December 21, 2018, after she had returned from the hospital and that she was still in police custody at the time.

On January 28, 2019, § 87(2)(b) was interviewed at the CCRB [BR 01]. When she went to the 101st Precinct stationhouse, she approached PO Decio, who was sitting at the front desk. PO Decio informed her that she could not collect her property without her identification. § 87(2)(b) responded that she was told she only needed the voucher slip. PO Decio then began to yell at § 87(2)(b) and they got into an argument. § 87(2)(b) asked PO Decio for his name, and he turned away from her, covered his mouth, and said his name in a medium-low level. § 87(2)(b) then asked for his badge number, which he ignored. § 87(2)(b) asked him to repeat his name and badge number two to three more times, which he ignored.

On February 27, 2019, PO Decio was interviewed at the CCRB [BR 02]. PO Decio stated that he was not working on December 24, 2018 and that he had an interaction with § 87(2)(b) on December 21, 2018. § 87(2)(b) had returned from the hospital and was handcuffed to a bar in the jail. § 87(2)(b) was yelling and screaming, and the desk sergeant asked PO Decio to check on her. PO Decio approached § 87(2)(b) who told him that she wanted water, which PO Decio got for her. He asked her if she required medical attention, and she said she did not. He did not recall if § 87(2)(b) asked for his name and badge number. He did not interact with § 87(2)(b) any other time aside from this incident.

§ 87(2)(b) stated that she recognized PO Decio as the officer at the 101st Precinct stationhouse when he responded to § 87(2)(b) on December 27, 2018. She acquired his name during this encounter. § 87(2)(b). A copy of the Tour 2 Roll Call on December 24, 2018 confirmed that PO Decio was not working on December 24, 2018. An MOS terminal search was conducted by the undersigned of Sgt. Scott Leff of the 101st Precinct, who was the desk officer on December 24, 2018. Sgt. Leff is a § 87(2)(b) old white male, § 87(2)(b), with brown hair and brown eyes. He did not match the description provided by § 87(2)(b) of the officer she interacted with nor did he look similar to PO Decio. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation A and B** be closed as **Unfounded**.

Allegation (C) Abuse of Authority: On December 27, 2018, at § 87(2)(b), Police Officer Edmond Decio failed to provide § 87(2)(b) with a business card.

Allegation (D) Abuse of Authority: On December 27, 2018, at § 87(2)(b), Police Officer Yvonne Barnes failed to provide § 87(2)(b) with a business card.

It is undisputed that PO Decio and PO Barnes responded to a 911 call made by § 87(2)(b) on December 27, 2018. While it is undisputed that PO Decio did not provide § 87(2)(b) with a business card, § 87(2)(g)

§ 87(2)(b) stated that she recognized PO Decio as the officer who refused to provide her with her property when he and PO Barnes responded to the call. She informed PO Decio that she wanted to file a police report, and he refused to process her complaint. PO Barnes then informed her that she had an outstanding warrant listing her as a violent offender on a marijuana charge. PO Barnes then showed her the warrant on her phone. § 87(2)(b) stated that she was only issued a summons for a marijuana offense in 2009. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) was not arrested or issued a summons as a result of this incident. § 87(2)(b) wrote down their name and shield numbers. Neither PO Barnes or PO Decio told § 87(2)(b) their name or badge number. Neither officer provided § 87(2)(b) with a business card, nor did she ask for their business cards.

PO Decio responded to § 87(2)(b)'s call on December 27, 2018. He did not know it was § 87(2)(b) making the call before he arrived on scene. He stated that he recognized § 87(2)(b) from their previous encounter on December 21, 2018. He did not recall if he introduced himself to § 87(2)(b). He did not recall if PO Barnes introduced herself to § 87(2)(b). PO Decio was equipped with business cards at the time, but did not provide one to § 87(2)(b). He did not know if PO Barnes provided a business card to § 87(2)(b).

PO Decio was not aware if the Right to Know Act mandated that he provide a business card during the situation. § 87(2)(b) did not request their business cards. PO Decio then left the room to speak with § 87(2)(b)'s doctor and PO Barnes remained in the room to speak with § 87(2)(b). He remained outside of the room for the duration of their conversation and did not hear any of the conversation. PO Barnes did not inform PO Decio of her conversation with § 87(2)(b). After her conversation, PO Decio stated that PO Barnes made the determination to mark the job as unnecessary and they resumed their patrol.

PO Barnes was interviewed at the CCRB on March 12, 2019 [BR 03]. PO Barnes did not recall having any interaction with § 87(2)(b) on December 27, 2018. She had marked in her Memo Book that she responded to a past assault call that day, marked it as unnecessary, and noted § 87(2)(b)'s name. PO Barnes did not recall PO Decio informing her that he and § 87(2)(b) had previously interacted. She did not remember showing § 87(2)(b) a warrant on her phone. She did not remember PO Decio stepping out of the room to speak with a doctor. She did not remember if she introduced herself to § 87(2)(b). She did not remember if she provided § 87(2)(b) with her business card. She is equipped with business cards and stated that she probably had them on her that day. She did not know if PO Decio provided § 87(2)(b) with a business card, but stated that he is equipped with them.

According to the Patrol Guide Section 203-09, a business card is to be offered for a law enforcement activity, except in cases when a summons is issued or an arrest is made, for noncustodial questioning of individuals suspected of criminal activity (or a Level 2 encounter) [BR 04].

§ 87(2)(g)
Therefore, it is recommended that **Allegation C and D** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two prior CCRB complaints, for which she was the victim of both [BR 05].
 - § 87(2)(b).
- PO Decio has been a member of service for 23 years, and has been subject to seven prior CCRB complaints and 18 allegations, none of which have been substantiated. § 87(2)(g)
§ 87(2)(g)
 - Case #201807230 and case #201808307 are currently awaiting board review.
- PO Barnes has been a member of service for 13 years, and has been the subject of two CCRB complaints and three allegations, none of which have been substantiated. § 87(2)(g)
§ 87(2)(g)
 - Case #201807230 is currently awaiting board review.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
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- On March 18, 2019, a FOIL request was submitted to the New York City Office of the Comptroller and will be added to the case file upon receipt [BR 06].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date